

Attorney Analysis

This report is based on civil trial court records from the selected state and does not include any federal litigation.

Attorney: CHRISTOPHER D. BRYAN (SBN: 35522)

I. Summary of Key Cases

Analysis of Christopher D. Bryan's litigation approach through 5 representative cases:

A. Case Study 1: [Thomas v. Conte \(Pitkin County Court\) \(Case No. 2023CV030102\)](#)

Case Information

- Filed: September 21, 2023
- Plaintiff: Hillary Thomas
- Defendant: Jean Pierre Conte
- Attorney for Plaintiff: Christopher D. Bryan (Garfield & Hecht, P.C.)

Factual Background

- Plaintiff alleges severe domestic abuse by defendant, including physical assault and financial coercion.
- Defendant allegedly retaliated by defaming plaintiff and interfering with her professional relationships.
- Plaintiff claims breach of a written agreement for medical expense payments.

Legal Claims

- Assault
- Battery
- Extreme and Outrageous Conduct
- False Imprisonment
- Negligent Infliction of Emotional Distress
- Defamation
- Tortious Interference with Contract and Prospective Economic Relations
- Negligent Misrepresentation
- Breach of Contract
- Civil Extortion

B. Case Study 2: [MM Eight Construction LLC v. 20 Patterson LLC et al. \(Garfield County Court\) \(Case No. 2022CV030025\)](#)

Case Information

- Filed: March 17, 2022
- Plaintiff: MM Eight Construction LLC
- Defendants: 20 Patterson LLC, 242 Crystal LLC, others
- Attorney for Defendants: Christopher D. Bryan (Garfield & Hecht, P.C.)

Factual Background

- Dispute over breach of contract and claims for construction defects and damages.
- Defendants assert counterclaims including breach of contract and damages.

Legal Claims

- Breach of Contract
- Unjust Enrichment (alternative)
- Quantum Meruit (alternative)
- Promissory Estoppel (alternative)

C. Case Study 3: [*Terrace At Snowmass LLC v. Capital Investments LLC et al. \(Pitkin County Court\) \(Case No. 2019CV030076\)*](#)

Case Information

- Filed: July 16, 2019
- Plaintiff: Terrace At Snowmass LLC
- Defendants: Capital Investments LLC, others
- Attorney for Plaintiff: Christopher D. Bryan (Garfield & Hecht, P.C.)

Factual Background

- Judicial foreclosure action regarding real property.
- Appointment of receiver and related motions.

Legal Claims

- Judicial Foreclosure
- Appointment of Receiver

D. Case Study 4: [*Marks v. Miller et al. \(Pitkin County Court\) \(Case No. 2019CV030004\)*](#)

Case Information

- Filed: January 14, 2019
- Plaintiff: Tony Marks
- Defendants: Laura Miller, Archie J. Eli, Eric Eli
- Attorney for Plaintiff: Christopher D. Bryan (Garfield & Hecht, P.C.)

Factual Background

- Malicious prosecution claims arising from prior civil protection order actions.
- Allegations of fabricated evidence and abuse of legal process.

Legal Claims

- Malicious Prosecution

E. Case Study 5: [*Aspen Board of Realtors Inc v. City of Aspen et al. \(Pitkin County Court\) \(Case No. 2021CV030131\)*](#)

Case Information

- Filed: December 27, 2021

- Plaintiff: Aspen Board of Realtors Inc
- Defendants: City of Aspen, Aspen City Council, others
- Attorney for Plaintiff: Christopher D. Bryan (Garfield & Hecht, P.C.)

Factual Background

- Challenge to City Council's emergency ordinance imposing a moratorium on residential development and short-term rental permits.
- Claims of Open Meetings Law violations and constitutional due process violations.

Legal Claims

- Declaratory Judgment
- Substantive and Procedural Due Process (42 U.S.C. § 1983)
- Injunctive Relief

II. Practice Area Insights

- **Broad Civil Litigation Scope:** Bryan handles complex civil litigation involving personal injury/domestic violence, construction and real estate disputes, municipal law, and constitutional challenges.
- **Client Representation:** Represents plaintiffs and defendants, including individuals, businesses, municipalities, and governmental entities.
- **Specialization in Construction and Real Estate Disputes:** Significant involvement in construction defect, breach of contract, and foreclosure cases, often representing developers or property owners.
- **Municipal and Administrative Law:** Handles cases involving municipal ordinances, open meetings law, and constitutional claims against local governments.
- **Complex Tort and Contract Claims:** Manages multi-claim cases combining torts (e.g., malicious prosecution, defamation) with contract and statutory claims.
- **Engagement of Expert Witnesses:** Utilizes expert testimony extensively in complex cases, including forensic psychologists, engineers, and real estate valuation experts.
- **Litigation Strategy Emphasis:** Focus on declaratory and injunctive relief to shape case posture in municipal and regulatory disputes.

III. Discovery Approach

- **Proactive and Detailed Discovery Management:** Bryan's cases reveal meticulous management of discovery disputes, including multiple discovery conferences, motions to compel, and protective orders.
- **Resistance to Overbroad Requests:** Regularly challenges scope and relevance of discovery requests, especially in complex construction and municipal cases.
- **Use of Third-Party Discovery:** Employs subpoenas to third parties to obtain documents when direct party discovery is limited or resisted.
- **Aggressive Enforcement of Discovery Compliance:** Moves for sanctions and attorneys' fees when opposing parties or non-parties fail to comply with discovery obligations.
- **Coordination with Motion Practice:** Discovery disputes are strategically linked with dispositive and procedural motions to control case flow and leverage.
- **Expert Discovery:** Coordinates expert disclosures and depositions in compliance with case management orders, including seeking extensions when necessary.
- **Effective Use of Protective Orders:** Protects sensitive materials, including attorney-client privileged documents, while balancing disclosure obligations.

(See [Thomas v. Conte](#); [MM Eight v. Patterson](#); [Marks v. Miller](#))

IV. Motion Practice

- **Frequent Use of Summary Judgment and Partial Summary Judgment Motions:** Bryan regularly files and defends against dispositive motions, often securing favorable rulings on key claims such as declaratory relief and breach of contract.
- **Strategic Use of Motions to Dismiss and Strike:** Utilizes motions to dismiss on procedural and substantive grounds, including challenges to standing, mootness, and failure to state claims.
- **Motion Practice to Enforce Discovery Compliance:** Pursues motions for sanctions, motions to compel, and motions for protective orders, with successful recovery of fees and costs.
- **Opposition to Untimely and Overbroad Motions:** Challenges motions filed after deadlines or seeking improper relief, including untimely

dispositive motions styled as motions in limine.

- **Expert-Related Motions:** Files motions to exclude or strike expert testimony based on qualifications, methodology, and scope of opinions, including Daubert-like challenges.
- **Procedural Motions to Control Case Management:** Seeks extensions of time, continuances, and modifications to case management orders to align with discovery and trial preparation.
- **Use of Motions to Exclude Evidence:** Employs motions in limine to exclude irrelevant, prejudicial, or privileged evidence, including challenging legislative privilege and attorney-client privilege assertions.
(See [Thomas v. Conte](#); [MM Eight v. Patterson](#); [Marks v. Miller](#); [Aspen Board of Realtors v. City of Aspen](#))

V. Stipulations

- **Cooperation on Procedural Extensions:** Bryan's cases show frequent stipulations to extend discovery cut-off dates, expert disclosure deadlines, and briefing schedules, reflecting a pragmatic approach to case management.
- **Protective Order Agreements:** Engages in joint stipulations for protective orders to safeguard confidential or privileged information.
- **Withdrawal and Substitution of Counsel:** Coordinates stipulations for counsel withdrawal and substitution with minimal disruption to case progress.
- **Case Management and Trial Scheduling:** Parties jointly stipulate to vacate trial dates, reset pretrial deadlines, and adjust case management orders to accommodate discovery and motion practice.
- **Strategic Use of Stipulations to Facilitate Discovery:** Stipulations often used to permit additional depositions or discovery beyond original limits when justified.
- **Balance of Cooperation and Advocacy:** While cooperative on procedural matters, Bryan maintains vigorous advocacy on substantive issues.
(See [Thomas v. Conte](#); [MM Eight v. Patterson](#); [Aspen Board of Realtors v. City of Aspen](#))

VII. Case Outcomes

- **Predominantly Favorable Outcomes for Plaintiffs:** Bryan's representation of plaintiffs in complex cases often results in favorable rulings on preliminary injunctions, declaratory relief, and summary judgment.
- **Effective Defense Outcomes:** When representing defendants, Bryan achieves successful dismissals, summary judgment, or favorable case management results.
- **Attrition and Settlement Leverage:** Cases often involve extended discovery and motion practice, leading to attrition and settlements favorable to clients.
- **Use of Injunctive Relief as Strategic Tool:** Bryan frequently secures preliminary and permanent injunctions to protect client interests in regulatory and domestic violence cases.
- **Sanctions and Fee Awards:** Successful motions for sanctions and attorneys' fees are a recurring theme, reflecting Bryan's aggressive enforcement of discovery compliance.
- **Trial Avoidance and Efficient Resolution:** Many cases conclude via motion practice or settlement before trial, demonstrating Bryan's pragmatic case management.
(See [Thomas v. Conte](#); [Aspen Board of Realtors v. City of Aspen](#); [Marks v. Miller](#))

VIII. Case Duration

- **Average Case Duration:** Cases generally span 1-4 years, reflecting complexity and extensive motion and discovery practice.
- **Extended Discovery Periods:** Multiple stipulations and motions to extend discovery cut-offs are common, prolonging case duration.
- **Strategic Timing:** Extended timelines often serve to increase settlement leverage or manage complex expert discovery.
- **Individual Case Durations:**
 - [Thomas v. Conte](#): Active since September 2023 with extensive ongoing discovery and motion practice.
 - [MM Eight v. Patterson](#): Filed March 2022, active with multiple discovery disputes and motions through 2025.
 - [Marks v. Miller](#): Filed January 2019, with ongoing litigation and motion practice through 2025.
 - [Aspen Board of Realtors v. City of Aspen](#): Filed December 2021, active with preliminary injunction and summary judgment motions through 2023.
- **Deliberate Case Management:** Duration often reflects deliberate defense strategy to manage resources and increase settlement leverage.
(See [Thomas v. Conte](#); [MM Eight v. Patterson](#); [Marks v. Miller](#); [Aspen Board of Realtors v. City of Aspen](#))

IX. Attorney's Patterns & Key Takeaways for Opposing Counsel

- **Sophisticated Multi-Claim Litigation Management:** Bryan skillfully handles cases involving intertwined tort, contract, and statutory claims, maintaining a comprehensive litigation strategy that balances aggressive motion practice with cooperative stipulations.

- *Key Takeaway(s)*: Opposing counsel should anticipate complex pleadings with multiple claims and defenses, prepare for extensive motion practice, and proactively manage discovery to avoid attrition.
- **Aggressive Discovery Enforcement Coupled with Procedural Cooperation**: Bryan vigorously enforces discovery compliance through motions to compel and sanctions, yet also engages in joint stipulations to extend deadlines and manage case pacing strategically.
 - *Key Takeaway(s)*: Opposing counsel must be prepared for stringent meet-and-confer efforts, potential sanctions for non-compliance, and should seek to negotiate reasonable extensions early to maintain leverage.
- **Strategic Use of Injunctions and Declaratory Relief**: Bryan frequently pursues and obtains preliminary and permanent injunctions and declaratory judgments in regulatory and domestic violence contexts, leveraging these tools to shape case trajectories.
 - *Key Takeaway(s)*: Opposing counsel should be prepared to defend against early injunctive relief and declaratory actions that can materially affect client interests and case posture.
- **Expert Witness and Evidence Control**: Bryan challenges expert qualifications and methodologies through motions to exclude and strike, and carefully balances privilege assertions with disclosure obligations to protect client interests.
 - *Key Takeaway(s)*: Opposing counsel should invest in robust expert support, anticipate challenges to expert testimony, and maintain meticulous privilege logs and discovery responses.
- **Deliberate Case Duration Management**: Cases often extend over multiple years with repeated extensions and discovery disputes, reflecting a deliberate defense approach to resource management and settlement leverage.
 - *Key Takeaway(s)*: Plaintiffs' counsel should prepare for protracted litigation timelines, focus on efficient discovery management, and consider early mediation after key discovery milestones.
- **Effective Fee and Sanctions Recovery**: Bryan achieves significant attorneys' fees and sanctions awards for clients, reflecting a calculated approach to discovery enforcement and motion practice.
 - *Key Takeaway(s)*: Opposing counsel should anticipate fee and sanction motions following discovery disputes and ensure compliance to mitigate exposure.
- **Industry and Regulatory Expertise**: Demonstrates deep understanding of construction, real estate, and municipal regulatory frameworks, tailoring litigation strategies to specific industry contexts.
 - *Key Takeaway(s)*: Opposing counsel should develop industry-specific knowledge and expert resources to counter specialized defense strategies.
- **Responsive to Procedural Changes and Case Developments**: Bryan adapts pleadings, discovery, and motions in response to evolving case circumstances, maintaining flexibility while preserving core litigation objectives.
 - *Key Takeaway(s)*: Opposing counsel should monitor case developments closely, anticipate strategic amendments, and maintain procedural vigilance.
- **Playbook Consistency Across Cases**: Bryan's litigation approach reveals consistent patterns in motion sequencing, discovery tactics, and case management, indicating a well-developed defense playbook.
 - *Key Takeaway(s)*: Opposing counsel can anticipate Bryan's strategic tendencies and prepare countermeasures accordingly.
- **Settlement-Oriented Case Management**: While aggressively defending, Bryan's approach also facilitates settlement opportunities through case pacing and issue narrowing.
 - *Key Takeaway(s)*: Opposing counsel should evaluate timing for mediation carefully, balancing discovery progress with settlement leverage.

Bryan's approach is characterized by a sophisticated balance of aggressive defense, procedural cooperation, industry knowledge, and resource management that legal experts can anticipate and strategically counter in litigation.